

Even as the pressure on him mounted, Lincoln remained determined to wait until the time was right to issue his formal policy. He believed that only he as president, through constitutionally sanctioned war powers, had the ability to enforce emancipation. He later explained, "I felt the measures, otherwise unconstitutional, might become lawful, by becoming indispensable to the preservation of the Constitution, through the preservation of the nation."

Carefully timing the release of the Preliminary Proclamation in September 1862 allowed Lincoln to prepare the way for the Final Emancipation Proclamation, which formally went into effect on January 1, 1863. Technically, the Final Proclamation only freed slaves in the rebellious states, leaving all those in the border states and in Union-held portions of the Confederate states still in bondage, while those deep behind Southern lines would have to await the arrival of Union armies before being liberated. The Emancipation Proclamation was not enforced until well after the war was over.

Anywhere near Union lines, however, and even in locations at a considerable distance from Union forces, news quickly spread among enslaved people that they were now free. To some degree, they had been taking matters into their own hands and slipping off to freedom since the war began, especially in Virginia, Tennessee, and Louisiana, where Union armies had occupied large swaths of former rebel territory. Now, in ones and twos and small groups, enslaved people left with a conviction, a feeling, or just an idea that the "day of Jubilo" (liberation) had come and that they were free to go. Many went straight to the Union armies, where they found work cooking, nursing the wounded, and taking care of the horses.